

24STLC08093 24STLC08093

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-14

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Case Number: 24STLC08093 Hearing Date: September 14, 2026 Dept: 25

HEARING DATE: Mon., September 14, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Interinsurance

Exchange of the Automobile Club v. Straughter, et al.

COMP. FILED: 11-06-24

CASE NUMBER: 24STLC08093

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE DISMISSAL

MOVING PARTY: Plaintiff Interinsurance Exchange of the
Automobile Club

RESP. PARTY: None

MOTION TO VACATE

DISMISSAL

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court

GRANTS Interinsurance Exchange of the Automobile Club's motion to vacate the

court-ordered dismissal for failure to appear at trial on May 6, 2026.

The May 6,
2026 dismissal is hereby SET ASIDE AND VACATED.

SERVICE:

[X]
Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X]
Correct Address (CCP §§ 1013, 1013a) OK

[X]
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 9, 2026 []
Late [X] None

REPLY: None
filed as of September 9, 2026 [] Late [X]
None

ANALYSIS:

Interinsurance Exchange of the Automobile Club filed
this subrogation action against Naima Kaleem Straughter and Marius Baiesc. Interinsurance obtained defaults against
Straughter and Baiesc in October 2025 and filed a default judgment package on
May 4, 2026. On May 6, 2026, Interinsurance's
counsel failed to appear for the non-jury trial, and the Court ordered Interinsurance's
complaint dismissed without prejudice pursuant to Code of Civil Procedure
section 581, subdivision (b)(3).
Interinsurance now moves to have the dismissal vacated pursuant to Code
of Civil Procedure section 473, subdivision (b)'s mandatory attorney-fault
provision.

A
motion pursuant to the mandatory relief provision of Code of Civil Procedure
section 473, subdivision (b), must be (1) timely, (2) in proper form, and (3)

accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) A court must grant relief if the party satisfies those requirements, unless the court finds that the default or dismissal was not actually caused by the attorney's fault. (Ibid.)

Interinsurance's motion, filed July 31, 2026, satisfies each of those requirements. Its counsel declares that the failure to appear was the result of counsel's "inadvertence and mistake" because he "mis-calendared the non-jury trial/prove-up hearing" scheduled for May 6, 2026.

The Court

GRANTS Interinsurance's motion. The May 6, 2026 dismissal is hereby SET ASIDE AND VACATED. The Court ORDERS Interinsurance to SHOW CAUSE, on Monday, November 16, 2026 at 9:30 a.m., why default judgment has not been entered in this action.